

		III. MOTION TO STRIKE Respondent's motion to strike attacks the third, fourth, and fifth causes of action on the ground they are not drawn in conformity with the laws of this state. It also seeks to strike the prayer for punitive damages because it is derivative of the fraud claim and, alternatively, is not supported by facts suggesting malice, fraud, or oppression. In addition, the motion to strike seeks to strike all allegations regarding respondent's drug use, employment history, and criminal history. Respondent's argument that the third, fourth, and fifth causes of action are not drawn in conformity with California law is duplicative of the arguments made in his demurrer and are, therefore, MOOTED by the ruling on the demurrer. Respondent's argument that the punitive damages claim is derivative of the fraud claim misreads the petition, which does not tie the punitive damages to the fraud claim. (See ROA 2, ¶ 11.) Punitive damages are available on breach of trust and breach of fiduciary duty claims. The allegation that Respondent attempted to sell substantial Trust assets without any knowledge or involvement by his cotrustee could, if proven true, support a finding of malice, fraud, or oppression. Accordingly, the motion to strike is DENIED as to the prayer for punitive damages. Finally, Respondent argues the allegations regarding his alleged drug use, employment history and criminal behavior should be stricken because they are irrelevant, more prejudicial than probative, and are inadmissible character evidence. These are arguments against admission of evidence. A pleading is not evidence. Accordingly, the motion to strike is DENIED as to its remainder. Petitioner is directed to give notice.
6	Randovic - Trust; 30-2024-01437165	<i>No Tentative Ruling.</i>
7	Aaron - Trust; 30-2025-01483366	<i>No Tentative Ruling.</i>